

From: Jeffrey Fischer
To: Jeff Dietlin
Date: 6/9/2008 3:42:42 PM
Subject: Re: NPDES draft Permit

Jeff,

Based on our conversation from this morning I offer the following in response to your comment on the toxicity requirements of the draft permit. First, at the time I drafted the permit I was unaware that Cadillac had already been approved to use only the more sensitive species for toxicity testing and were no longer required to use fathead minnows. As a result, the requirement to perform chronic toxicity tests on Fathead Minnows will be removed from the proposed permit.

Second, although reasonable potential analysis demonstrated the potential for the effluent to exceed water quality standards for chronic toxicity requiring a limit be included in the reissued permit, in consideration of the fact that Cadillac has identified the source of elevated Zinc levels determined to be the cause of the observed toxicity and have taken measures to eliminate that source, the department has determined that the permittee will need to monitor the effluent monthly for chronic toxicity using Ceriodaphnia Dubia, but with the option to request a reduction in the monitoring frequency of chronic toxicity after 12 months of data have been submitted.

I believe this is a workable solution which considers all aspects and maintains adequate protections for the environment while providing a means to reduce the cost incurred by the permittee after a more robust database for chronic toxicity has been developed. Let me know if this is agreeable to you and if not what changes you would like the department to consider. Please respond at your earliest convenience. Thanks.

>>> "Jeff Dietlin" <wwtpr@Cadillac-MI.net> 5/5/2008 1:30 PM >>>

Jeff,

Did you get my e-mail?

One of the people I cc e-mailed me that they didn't get the whole thing.

I am attaching it to this just to be safe.

Jeff Dietlin

CC: Richard Shoemaker; Sylvia Heaton